

CV-23-006045 RHOADS, FINNICK vs MCCANTS, BARBARA – Defendant Barbara Mccants’ Motion for Summary Adjudication - GRANTED in part and DENIED in part as MOOT, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: As to Issue One, Defendant has met her initial burden of demonstrating the absence of a triable issue regarding her knowledge of dangerous propensities. Defendant established that she had no safety concerns regarding her dog, “General,” before the incident (SUF No. 5), had never observed General behave aggressively (SUF No. 6), was unaware of any prior biting incidents (SUF No. 7), and knew only of behavior she described as playful “flea biting” (SUF No. 8). Defendant's evidence therefore negates an essential element of the strict-liability claim. No opposition was filed and no evidence was presented creating a triable issue of material fact. Summary adjudication of the second cause of action is therefore GRANTED. As to Issues Two, Three, and Four, Defendant's reply acknowledges that the claims of Harold Rhoads, Riley Rhoads, and Sarah Rhoads have been resolved and are moot in light of their dismissal from the action. Accordingly, Issues Two, Three, and Four are DENIED as MOOT. The following are the tentative rulings for cases calendared before Commissioner Richard D. Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no Tentative Rulings for Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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